

22VECV00379 22VECV00379

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-07-30

Motion: DEFENDANTS ARVIND DOSHI, CHANDRIKA DOSHI, TEJAS DOSHI AND PARAS DOSHI'S MOTION FOR AN OSC RE: CONTEMPT

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Case Number: 22VECV00379 Hearing Date: July 30, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

NIKI-ALEXANDER SHETTY, an individual and Trustee of the AZ Alex Family Trust dated August 13, 2019; ADINA ZAHARESCU, an individual and Trustee of the AZ Alexander Family Trust dated August 13, 2019; CREST, INC., a California corporation; and CREST PROPERTY HOLDINGS, I.LC, a California limited liability company,

Plaintiffs,

vs.

RAO VFNKEKATESWARA DALUVOY, an individual; BARSTOW DALUVOY FIRST MORTGAGE INVESTORS, LP; BARSTOW DALUVOY PROJECT LENDERS, LP; R.V. DALUVOY, M.D., INC.; RAO V. DALUVOY, M.D., INC.; YUCCA VALLEY PROPERTY, LLC; AARON TRUCKING, INC.; RYAN ESTATES, LLC, a California limited liability company; RAMAN RAVAGENDA, an individual; ARVIND DOSHI, an individual; CHANDRIKA DOSHI, an individual; PARAS DOSHI, an individual; TEJAS DOSHI, an individual; REZA SAFAIE, an individual; BHAMINI NARAYANASWAMY, an individual; and DOES I-500, inclusive,

Defendants.

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CASE NO: 22VECV00379

[TENTATIVE] ORDER RE: DEFENDANTS ARVIND DOSHI, CHANDRIKA DOSHI, TEJAS DOSHI AND PARAS DOSHI'S
MOTION FOR AN OSC RE: CONTEMPT

Dept. U

8:30 a.m.

July 30, 2026

BACKGROUND

On March 16, 2022, Plaintiffs Niki-Alexander Shetty (“Shetty”), Adina Zaharescu (“Zaharescu”), Crest Inc., and Crest Property Holdings, LLC filed their complaint in this case (the “Lead Case”), alleging twenty-four (24) causes of action against fifteen (15) Defendants, including Rao Daluvoy (“Daluvoy”); Ryan Estates, LLC (“Ryan Estates”); Bhamini Narayanaswamy (“Narayanaswamy”); and Arvind Doshi, Tejas Doshi, and Paras Doshi (collectively, the “Doshi Defendants”).

On May 26, 2022, Cross-Complainants Narayanaswamy, Ryan Estates, and Daluvoy filed their cross-complaint against Cross-Defendants Shetty; Barrett, Daffin, Frappier, Treder & Weiss, LLP; and Deutsche Bank Americas Holding Corporation (“Deutsche Bank”).

On February 28, 2023, the Court granted the Doshi Defendants' motion to coordinate and consolidate this case and San Diego Superior Court, Case #37- 2022-00013079-CU-OR-CTL, and the two (2) cases were consolidated for all purposes.

On March 1, 2023, the Doshi Defendants filed their cross-complaint against Shetty and Daluvoy, alleging twenty-one (21) causes of action, including breaches of promissory notes, common counts, and fraud. The Doshis alleged that they loaned monies to Shetty that were never repaid. The loans were secured with deeds of trust on properties owned in whole or in part by Shetty (or entities controlled by him).

On April 26, 2023, Shetty and Zaharescu filed their first amended complaint (the "FAC"), alleging the following causes of action, among others: (12) fraud against Arvind Doshi; (13) conspiracy to commit fraud against the Doshi Defendants and others; (14) breach of contract against Arvind Doshi; (17) quiet title as to the Glencoe Property against Ryan Estates, Narayanaswamy, and Aaron Trucking; (18) wrongful foreclosure as to the Terra Bella Property against the Doshi Defendants; (19) cancellation of written instrument as to the Terra Bella Property's trustee's deed against Tejas Doshi and Paras Doshi; and (20) quiet title as to the Terra Bella Property against Tejas Doshi and Paras Doshi.

On June 27, 2023, the Court sustained, with leave to amend, the Doshi Defendants' demurrer for sufficiency and as to the following causes of action against the Doshi Defendants in the FAC insofar as they are claims arising from alleged fraud (as opposed to claims arising from breach of contract):

(12) fraud;

(13) conspiracy to commit fraud;

(18) wrongful foreclosure as to the Terra Bella Property;

(19) cancellation of written instrument as to the Terra Bella Property's trustee's deed;

and (20) quiet title as to the Terra Bella Property against Tejas Doshi and Paras Doshi.

The Court also sustained, without leave to amend, the Doshi Defendants' demurrer for sufficiency as to Plaintiffs' fourteenth cause of action for breach of contract against Arvind Doshi and as to Plaintiffs' other causes of action against the Doshi Defendants insofar as they were claims arising from alleged breach of contract. Finally, the Court struck, sua sponte, the entirety of Plaintiffs' seventeenth cause of action for quiet title as to the Glencoe Property with leave to amend insofar as Plaintiffs were attempting to state a claim for quiet title based on fraud (but without leave to amend insofar as Plaintiffs were attempting to state a claim for quiet title based on breach of contract).

On October 16, 2023, the Court granted the Doshi Defendants' motion for a monetary sanction against Shetty for his misuse of the discovery process but denied the Doshi Defendants' motion for an order dismissing the FAC as a terminating sanction. The Court also denied the Doshi Defendants' request to strike the FAC on grounds that it was belatedly filed.

On October 18, 2023, Shetty and Zaharescu filed their second amended complaint (the "SAC"), alleging the following causes of action, among others: (12) conspiracy to commit fraud against Daluvoy, the Doshi Defendants, Narayanaswamy, and Aaron Trucking among others; (13) breach of oral contract against Arvind Doshi; (14) cancellation of written instruments against Arvind Doshi; (15) cancellation of written instruments as to the Glencoe Property against Ryan Estates, Narayanaswamy, and Aaron Trucking; (16) quiet title as to the Glencoe Property against Ryan Estates, Narayanaswamy, and Aaron Trucking; (17) wrongful foreclosure as to the Terra Bella Property against the Doshi Defendants; (18) cancellation of written instrument as to the Terra Bella Property against the Doshi Defendants; and (19) quiet title as to the Terra Bella Property against the Doshi Defendants.

On November 17, 2023, and pursuant to Shetty's oral request, the Court dismissed Shetty's consolidated action against Defendants.

On February 6, 2024, the Court sustained, without leave to amend, the Doshi Defendants' demurrer for sufficiency and uncertainty as to the twelfth through nineteenth causes of action in the SAC. The Court also granted, without leave to amend, the Doshi Defendants' motion to strike related portions thereof.

On February 8, 2024, the Court issued a nunc pro tunc order to add Defendant Chandrika Doshi as a defendant as to whom the demurrer was also sustained, without leave to amend. Chandrika Doshi's name had been inadvertently omitted from the Court's Minute Order dated February 6, 2024.

On April 4, 2024, the Doshi Defendants dismissed their entire cross-complaint filed in the Related Case.

On May 3, 2024, Ryan Estates, Daluvoy, and Narayanaswamy filed their form dismissals of their entire cross-complaint in this action.

On May 29, 2024, the Court granted the Doshi Defendants' motion for attorneys' fees in the total reduced amount of \$106,950.00.

On September 9, 2024, the Court denied Plaintiffs' motion for an order vacating their dismissal of the consolidated case on grounds of attorney mistake.

On March 17, 2025, the Court granted Plaintiffs' then-attorney's motion to be relieved as counsel.

On May 5, 2025, the Court entered default judgment in favor of Arvind, Paras, and Tejas and against Shetty and Daluvoy.

On July 24, 2025, this Court issued an order for appearance and examination ("ORAP") for Shetty's debtor's examination on October 29, 2025. (Cohen decl., Exh. 1.)

On September 16, 2025, the Doshi Defendants served the ORAP on Shetty, along with a subpoena for specified writings and records to be produced at the ORAP hearing. (Cohen decl., ¶ 4, Exhs. 1-2.)

On October 29, 2025, the Court held an ORAP hearing at which Shetty failed to appear. The Court thereupon ordered (and held) a bench warrant for Shetty in the amount of \$50,000.00.

On November 13, 2025, Shetty appeared at his bench warrant hearing, and the Court recalled and quashed the bench warrant. However, Shetty still produced none of the writings specified in the subpoena. (Cohen decl., ¶ 7, Exh. 3.)

On January 26, 2026, the Court denied Shetty's motion for relief from default judgment.

On March 17, 2026, the Doshi Defendants filed their motion for an OSC re: contempt against Shetty based on his failure to produce documents responsive to the ORAP subpoena.

On March 19, 2026, the Court held another ORAP hearing, at which time Shetty was sworn and examined. The Court continued the ORAP hearing to July 30, 2026, to allow Shetty time to bring subpoenaed documents to the next hearing.

On June 18, 2026, the Court of Appeal affirmed this Court's order denying Shetty and Zaharescu's motion for relief from voluntary dismissal.

As of 10:00 A.M. on July 27, 2026, Shetty had filed no opposition brief as to the contempt motion.

RULING

If Shetty still has not produced documents responsive to the ORAP subpoena before the continued ORAP hearing on July 30, 2026, the motion is granted.

LEGAL STANDARD

"Disobedience of any lawful judgment, order, or process of the court" is a contempt of the authority of the court. Code Civ. Proc., § 1209 (a)(5). "When the contempt is not committed in the immediate view and presence of the court ... an affidavit shall be presented to the court or judge of the facts constituting the contempt." Code Civ. Proc., § 1211 (a). The judge shall thereupon make a finding re: contempt, and the court may grant an order to show cause. Code Civ. Proc., § 1212. If the court finds that the moving party has, by affidavit, alleged facts sufficiently showing the required bases for contempt jurisdiction, the court signs an order to show cause re: contempt, setting the date and time for a contempt hearing. Code Civ. Proc., § 1212.

"Disobedience to a subpoena, or a refusal to be sworn, or to answer as a witness, or to subscribe an affidavit or deposition when required, may be punished as a contempt by the court issuing the subpoena." Code Civ. Proc., § 1991.

REQUEST FOR JUDICIAL NOTICE

The Doshi Defendants request that the Court take judicial notice of the ORAP and of proof of service thereof, both of which have been filed in this Court. The Court takes judicial notice as requested. See Evid. Code, § 452.

DISCUSSION

The Doshi Defendants move for an OSC re: contempt against Shetty based on his failure to produce documents responsive to the ORAP subpoena.

On May 5, 2025, the Court entered default judgment in favor of Arvind, Paras, and Tejas and against Shetty and Daluvoy. On July 24, 2025, this Court issued an ORAP for Shetty's debtor's examination on October 29, 2025. On September 16, 2025, the Doshi Defendants served the ORAP on Shetty, along with a subpoena for specified writings and records to be produced at the ORAP hearing. On October 29, 2025, the Court held an ORAP hearing at which Shetty failed to appear. The Court thereupon ordered (and held) a bench warrant for Shetty in the amount of \$50,000.00.

On November 13, 2025, Shetty appeared at his bench warrant hearing, and the Court recalled and quashed the bench warrant. However, Shetty still produced none of the writings specified in the subpoena. On March 19, 2026, the Court held another ORAP hearing, at which time Shetty was sworn and examined. The Court continued the ORAP hearing to July 30, 2026, to allow Shetty time to bring subpoenaed documents to the next hearing. As of 10:00 A.M. on July 27, 2026, Shetty had filed no opposition brief as to the contempt motion.

Shetty has had several opportunities to comply with the duly issued and noticed ORAP subpoena and has failed to do so. On March 19, 2026, the Court specifically directed Shetty to bring the subpoenaed documents to the continued hearing on July 30, 2026. If Shetty still has not produced documents responsive to the ORAP subpoena before the continued ORAP hearing on July 30, 2026, the Court agrees with the Doshi Defendants that they are entitled to an order for an OSC re: contempt.

The motion is granted. See Code Civ. Proc., § 1991 ("Disobedience to a subpoena, or a refusal to be sworn, or to answer as a witness, or to subscribe an affidavit or deposition when required, may be punished as a contempt by the court issuing the subpoena").

CONCLUSION

The Doshi Defendants' motion for an OSC re: contempt against Niki-Alexander Shetty is GRANTED.

The Doshi Defendants are ORDERED to give notice.

DATED: July 30, 2026

Lee Arian

Judge of the Superior Court